

Bibhisen Mohanta vs Lilamani Mohanta And Others on 15 April, 2021

A.H.O. No.6 of 2001

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Present: SHRI S. K. MISHRA, J
AND
MISS SAVITRI RATHO, J

A.H.O. No.6 of 2001

Bibhisen Mohanta

Appellant.

- Versus -

Lilamani Mohanta and others

Respondents.

For Appellant : Mr. S.P. Mishra, Sr. Advocate For Respondents : None.

17. 15.04.2021 This matter is taken up through Video Conferencing mode.

Heard learned counsel for the appellants and learned counsel appearing for the respondents.

2. In this intra Court appeal, the defendant no.3 being the appellant in First Appeal No.130 of 1985, decided on 07.08.1998, assails the finding of the learned Single Judge, dismissing the appeal of the defendant no.3 and upholding the judgment dated 24.04.1985 and decree dated 01.05.1985 passed by the learned Subordinate Judge, Rairangpur in T.S. No.13 of 1981.

3. A suit for partition was filed by one Chanchala Bewa, plaintiff No.1 for herself and her minor daughter plaintiff no.2 against the defendant nos.1 to 4 with a prayer to partition the land described in the Schedules to the plaint.

Undisputedly the parties are Kurmis by caste and are guided by Venaras School of Mitaskhara, the Hindu Marriage Act, 1955 and the Hindu Succession Act, 1956. One Chamtu had about 10 Manas of land in village Ramapahadi describing Schedule 'B' of the plaint. After his demise, lands were jointly recorded in the names of his sons, namely, Jaihari, Maheswar, Jala, Raghu and Sanatan during the settlement of 1927. While the five sons of Chamtu were possessing these lands Raghu died issueless and Jala died leaving a daughter. Thereafter, the rest of the three brothers effected an amicable partition amongst themselves and divided 'B' Schedule property. They possessed their respective share separately. After the said partition Sanatan and Jaihari jointly acquired some lands describing in lot no.3 of Schedule 'C' to the plaint. As such the plaintiffs claim that they are entitled to 1/2 share of the Schedule 'C' land. Sanatan father of plaintiff no.1 acquired about 9 Manas of land in village

Kanipur under Khata No.177 as described in Schedule 'D' to the plaint and possessed the same. After the death of Sanatan his four sons, namely, Dubraj, Ugresen, Dusasan and Bibhisana inherited and possessed the same with their widow mother Dura Bewa.

Under some previous arrangement Dubraj, husband of plaintiff no.1 got a share from his brother and possessed it and as such plaintiff no.1, the widow of Dubraj and plaintiff no.2, minor daughter of Dubraj, filed the suit for partition.

Proforma Defendant No.5 supported the case of plaintiffs.

4. Defendants nos.1 to 4 filed a joint written statement challenging the maintainability of the suit on various grounds and alleged that after birth of plaintiff no.2, Dubraj and plaintiff no.1 did not pull on well and as such plaintiff no.1 did not like to remain with Dubraj as his wife. The matter was put before some village gentlemen of Singala. As per their decision, Dubraj divorced plaintiff no.1 according to caste custom which was also reduced to writing on 22.04.1969. Such written document has not been produced and proved in this case.

Thereafter, plaintiff no.1 stayed in her father's house with plaintiff no.2. She remarried one Sanatan Mohanta of village Badra. He died and thereafter plaintiff no.1 was staying in her father's house at village Bagdega. After the divorce Dubraj married for the second time to one Chitra, the proforma defendant no.5 and by the time Dubraj died, proforma defendant no.5 had conceived. A daughter was born, who also died. Defendant no.5, as per the defendant nos.1 to 4, has lost her mental balance and she has not regained her mental balance. Their positive case is that since plaintiff no.1 was divorced they are not entitled to any share from the property of Dubraj.

5. Though five issues were cast by the learned Subordinate Judge, Rairangpur, the issue relating to the divorce of plaintiff no.1 and her remarriage gained importance in this case.

The learned Trial Judge having taken into consideration, the materials placed before him that the defendant has not established that plaintiff no.1 actually divorced Dubraj as there is not enough evidence regarding the same and alleged divorce was not proved during the trial.

6. In assailing the findings recorded by the learned Trial Judge, the defendant nos.1 to 4 assailed it before this Court which was disposed of by the learned Single Judge in the first appeal, particulars of which is reflected in the paragraph 1 of this order. The learned Single Judge also came to the conclusion that there are no materials on record to show that plaintiff no.1 had actually divorced late Dubraj and that she is not entitled to property of her husband. Thereafter, learned Single Judge dismissed the appeal.

7. In assailing the findings on factual aspects, Mr. S.P. Mishra, learned Senior Advocate appearing for the appellants draws attention of the Court to certain portion of the evidence led in this case. For the proper appreciation it is quoted below:-

"P.W.2- In his cross-examination has stated Dubraj Mother Dura did not like Chanchala. Then Chanchala left the house of Dubraj with Lalmani to her father's house at Bagadga. About 2 years thereafter, Dubraj married to Chitra. Chanchala again came and demanded maintenance during life time of Dubraj when Dubraj died, Chanchala did not come. Hence, it is argued by Mr. Mishra, learned counsel for the appellant that this statement of P.W.2 clearly show in as much as P.W.2 in his statement has admitted the dispute and it shows that there was no relationship between Chanchala and Dubraj. Thus no doubt can be caste that Chanchala is a divorcee.

D.W.1 (defendant no.3, brother of Dubraj) in his examination in chief has stated:

"During the life time of Dubraj, Chanchala was not pulling on well with Dubraj for which she left the house and there was a caste meeting in which Dubraj divorced Chanchala. Then Chanchala married Sanatan Mohanta of Badala in 'Sanga' form. Dubraj brought the second wife. Chitra is the second wife of my brother. As Chanchala has married elsewhere, if share would be given to her, she would dispose of the same, we have no objection if share would be given to Chitra and Lalmani".

In Cross-examination :

"After divorce Lalmoni was not taken by Chanchala. It is not a fact that Lalmoni did not stay in our house after divorce. It is not a fact that she (Chanchala) did not marry Sanatan in Sanga form".

The learned counsel for the appellant would argue that the statement of defendant no.3 and D.W.1 and the statement of PW.2 in his cross-examination prima facie establish that as Dubraj had divorced Chanchala, she is not entitled to any share in the defendant's family property. Moreover, he further relies on the following statement of D.W.2, which is quoted below:

P.W.2- brother of Sanatan Mohanta (To whom Chanchala remarried) has stated in his examination in chief as follows:

"I, know Sanatan Mohanta. He is related to me as cousin brother. I know Chanchala. She had married Sanatan in Sanga form. We took her from Bagadega village. As Chanchala had married earlier and she had left her husband, we took her in Sanga form. Chanchala is having son and daughter through Sanatan. Chanchala had no issue through First husband".

In her cross-examination:-

"It is not a fact that no sanga form of marriage took place and I do not know anything about the parties".

Having considered the material available before us, we are of the opinion that there is no clear, cogent and reliable evidence on the record to show that actually Chanchala and Dubraj were divorced. Evidence on these aspects is squarely lacking. Moreover, it is the case of the defendants that an agreement or deed of divorce was prepared before the gentlemen of the village. Such document has not been proved in this case. No explanation is forthcoming, why such document, if executed, has not been produced and proved in this case. So, factually this aspect cannot be disturbed.

8. Moreover, the contention of the learned Senior counsel for the appellant is also not legally tenable. Even, if there was a divorce as per the customs, then also it cannot be held to be a valid divorce extinguishing the right of Chanchala in the property of her husband. In this connection, we take note of certain provisions of the Hindu Marriage Act, 1955, (hereinafter referred as the 'Act', for brevity). It is admitted by Shri S.P. Mishra, learned Senior Advocate that parties are governed by the aforesaid Act. Clause (a) of Section 3 of the Hindu Marriage Act provides for the definition of customs or usage. The same is quoted below for proper appreciation:-

"(a) the expressions "custom" and "usage" signify any rule which, having been continuously and uniformly observed for a long time, has obtained the force of law among Hindus in an local area, tribe, community, group or family".

So, in order to establish a particular custom, which was resorted to by the parties, as claimed by the defendant in this case, the parties relying on such customs most specifically plead that such customs signifying any rule, having continuously and uniformly observed for a long time has obtained the force of law among Hindus of a particular tribe, community etc. So, in order to bring home a case of a particular caste custom, the following ingredience are necessary to be established. They are enumerated below:

- (i) There has to be a specific pleading regarding existence of such a custom;
- (ii) It must be proved by preponderance of evidence that such custom were being followed continuously and uniformly from time immemorial;
- (iii) The said custom is certain;
- (iv) Such customs is not unreasonable and finally it is not opposed to public policy.

In this case, there are no pleadings about any such prevalent custom. Mr. Mishra, learned Senior Advocate took us to the written statement filed by the defendant nos.1 to 4 in the Court and he is not able to make out any pleading regarding existence of any such custom which is certain, being followed from time immemorial and that it is not against the public policy or unreasonable.

9. We are also examined the case in its applicability and as per provision Section 2 of the Hindu Marriage Act is applicable to all Hindus. Section 4 in the Hindu Marriage Act provides for overriding effect of the Act and laid down that save as otherwise expressly provided in the Act, any text rule or

interpretation of Hindu law or any custom or usage as part of law in force immediately before the commencement of this Act shall cease to have effect with respect to any matter for which provision is made in the Act. Similarly, any law and force immediately before the commencement of the Act shall cease to have effect in so far as it is inconsistent with any of the provisions the Act.

Section 13 in the Hindu Marriage Act provides that any marriage solemnised, whether before or after the commencement of the Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground stated in that section.

By necessary implication Section 13 of the Hindu Marriage Act provided that marriage can only be dissolved by a decree of divorce on the ground available under Section 13 of the Act. In order to establish a case of divorce by custom the parties seeking such a finding on the facts of the case has to establish the custom or the other requirements as narrated and discussed in the proceeding paragraph. In this case, as there is no such evidence on record or pleadings to that effect, we are of the opinion that this is not a case, where the Court should come to a conclusion that Chanchala, the plaintiff no.1, by resorting to the caste custom, divorced her husband Dubraj.

The defendant nos.1 to 4 also pleads that plaintiff no.1 has married another person as per 'Sanga' custom. The same principles i.e. applicable to divorce by caste custom, applies to second marriage also. In this case, since there is no material on record to show that in fact there was a custom amongst the kurmis called Sanga custom for solemnize marriage. Such a plea cannot be accepted and has not been accepted by learned Trial Judge as well as the learned Appellate Judge. Moreover, Section 7 of the Act provides for ceremonies for a valid Hindu Marriage. A Hindu marriage may be solemnized in accordance with the customary Rites and ceremonies of either party. Sub-section-(2) provides that where such Rites and ceremonies include the saptpadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken. In the case of Kanwal Ram and Ors vs. Himachal Pradesh Administration, AIR 1966 SC 614, the Hon'ble Supreme Court has held that a marriage is not proved unless the essential ceremonies required for its solemnization are proved to have been performed. In this case, admittedly, there is no evidence regarding the solemnization between the plaintiff no.1 and Sanatan. So, this Court is unable to accept the argument of Mr. S.P. Mishra, learned Senior Advocate for the appellant that Chanchala had married Sanatan and therefore, lost her right to said land in the property of Dubraj.

10. In view of the aforesaid discussions, we are of the opinion that there is no merit in the Intra Court appeal and the same is dismissed being devoid of merit. There shall be no order as to costs.

The T.C.Rs. be returned back to the trial court forthwith. As the restrictions due to resurgence of COVID-19 are continuing, learned counsel for the parties may utilize the soft copy / downloaded copy of this order available in the High Court's website or print out thereof at par with certified copies, subject to attestation by Mr. S.P. Mishra, learned Senior Counsel for the appellant, in the manner prescribed, vide Court's Notice No.4587, dated 25.03.2020 as modified by Court's Notice No.4798 dated 15.04.2021.

(S. K. Mishra) Judge (Savitri Ratho) Judge TUDU